

-
File No.: EXP202212345

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: THE CITY COUNCIL OF MADRID, on October 24, 2022, through a report from the Municipal Police, submitted a report to the Spanish Agency for Data Protection. The report is directed against the INDEPENDENT SCOUTS ASSOCIATION OF MADRID with NIF G84849546 (hereinafter, SCOUTS).

The reasons on which the report is based are as follows:

A police report dated October 14, 2022, is provided, which states that on October 13, 2022, waste was found abandoned on public roads in the area of (...), including, among others, documents issued by the INDEPENDENT SCOUTS ASSOCIATION OF MADRID, containing data of minors and Medical Reports.

Along with the police report, a photographic report is provided regarding the exact location of the found documentation related to personal data, as well as photographs of some of the documents found, where personal data can be found, which are summarized in the police report as follows:

- 1.- Photograph "Medical Record" consists of 29 units with personal data of different individuals in each record. With the report, a photograph of said medical record is provided in which the name and surname, date of birth, ID number, address, contact phone number, and medical data such as up-to-date vaccinations, allergies, among others, can be observed.
2. and 3.- Photograph "Protocol for action against COVID in leisure and free time activities" consists of 29 units with data of different individuals in each document. With the report, two photographs of said protocol are provided in which the name and surname, and ID number can be seen.
- 4.- Photograph "Authorization to go on the raid alone" consists of 3 units with data of different individuals in each authorization. In the photograph attached to the report, the name, surname, and ID number of both a minor and their guardian/parent can be observed.
- 5.- Photograph "Authorization for camp 2021" consists of 30 units with data of different individuals in each authorization. In the photograph provided with the report, the name, surname, ID number, and address of the father/mother/legal guardian, as well as of a minor, can be seen.
- 6.- Photograph "Personal Records" consists of 25 units with data of different individuals in each record. In the photograph provided with the report, the name, surname, date of birth, ID number, address, phone numbers, and contact email of a minor can be observed, as well as the same data of the father and mother or legal guardian. A photograph of the minor is included.
- 7.- Photograph "Explicit consent for data collection" is 1 unit of consent with personal data. In the photograph provided with the report, the name, surname, and ID number can be observed.
- 8.- Photograph "Explicit consent for image processing" is 1 unit of consent with personal data. In the photograph provided, the name, surname, and ID number can be observed.
- 9.- Photograph "Photocopy of National Identity Document" is 1 unit photocopy of ID, on both sides of a minor.
- 10.- Photograph "Color photocopy of Health Card" is 1 unit photocopy of Health Card.
- 11.- Photograph "Urgent Transfer Report 061" is 1 unit original health report. In the photograph provided, the urgent medical transport report can be observed, which includes the name, surname, and address of a minor.
- 12.- Photograph "Member Identification Document" is 1 unit original. In the photograph provided, it can be seen that this card includes the name, surname, and address, among other data.

SECOND: On June 29, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the accused party, for the alleged infringement of Article 5.1.f) of the GDPR and Article 32 of the GDPR, classified under Article 83.4 of the GDPR and Article 83.5 of the GDPR.

The initiation agreement was sent, in accordance with the regulations established in the LPACAP, by postal notification, being returned to the sender as unknown on July 10, 2023, as stated in the

certificate in the file, proceeding to its publication in the Official State Gazette on August 3, 2023, in accordance with the provisions of Article 44 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations.

THIRD: The aforementioned initiation agreement was notified in accordance with the regulations established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) and after the period granted for the submission of allegations has elapsed, it has been confirmed that no allegations have been received from the accused party. Article 64.2.f) of the LPACAP -provision of which the accused party was informed in the initiation agreement- establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when...

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

3/9

this contains a precise statement regarding the attributed responsibility, it may be considered a proposal for resolution. In the present case, the initiation agreement of the sanctioning file determined the facts on which the accusation was based, the infringement of the GDPR attributed to the accused party, and the sanction that could be imposed. Therefore, considering that the accused party has not made any allegations regarding the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case as a proposal for resolution.

In light of all the actions taken, the Spanish Agency for Data Protection considers the following facts to be proven in this procedure,

PROVEN FACTS

FIRST: It is recorded that on October 24, 2022, a report from the Municipal Police of Madrid was received, which states that on October 13, 2022, documents issued by the SCOUTS containing data of minors and medical reports were found.

SECOND: It is recorded that, along with the police report, a photographic report of the location where the documentation was found was attached, as well as photographs of some of the documents found.

LEGAL GROUNDS

I

Competence and applicable regulations

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary issues

In the present case, in accordance with the provisions of Articles 4.1 and 4.2 of the GDPR, it is recorded that there has been a processing of personal data, since SCOUTS collects and retains, among others, the following personal data of individuals: name and surname, date of birth, ID number, health data, among other treatments.

SCOUTS carries out this activity in its capacity as the data controller, as it is the one who determines the purposes and means of such activity, by virtue of Article 4.7 of the GDPR.

Article 4, paragraph 12 of the GDPR defines personal data security breaches as "any breach of security that results in the accidental or unlawful destruction, loss, alteration of, or unauthorized

disclosure of, or access to personal data transmitted, stored, or otherwise processed.”

In the present case, there is a personal data security breach under the circumstances mentioned above, categorized as a confidentiality breach, as documentation containing personal information about minors was left unsecured in a public place.

Within the principles of processing provided for in Article 5 of the GDPR, the integrity and confidentiality of personal data is guaranteed in paragraph 1.f) of Article 5 of the GDPR. For its part, the security of personal data is regulated in Article 32 of the GDPR, which governs the security of processing.

III

Principle of integrity and confidentiality

Article 5.1.f) “Principles relating to processing” of the GDPR establishes:

“1. Personal data shall be:

(...)

f) processed in a manner that ensures appropriate security of the personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction, or damage, through the application of appropriate technical or organizational measures (‘integrity and confidentiality’).”

In the present case, from the documentation in the file, it is recorded that the personal data of the affected individuals were improperly exposed to third parties in a public place, which indicates an absolute lack of application of technical and organizational measures aimed at ensuring the principle of confidentiality.

In accordance with the evidence available at this stage of the resolution of the sanctioning procedure, it is considered that the known facts constitute an infringement, attributable to SCOUTS, for violation of Article 5.1.f) of the GDPR.

IV

Classification of the infringement of Article 5.1.f) of the GDPR

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

5/9

The aforementioned infringement of Article 5.1.f) of the GDPR constitutes the commission of the infringements typified in Article 83.5 of the GDPR, which under the heading "General conditions for the imposition of administrative fines" provides:

"Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total global annual turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; (...)"

For the purposes of the statute of limitations, Article 72 "Very serious infringements" of the LOPDGDD indicates:

"1. Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall be subject to a three-year statute of limitations, which involve a substantial breach of the articles mentioned therein and, in particular, the following:
a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679. (...)"

V

Sanction for the infringement of Article 5.1.f) of the GDPR

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this moment of resolution of the sanctioning procedure, it is considered that the balance of the circumstances contemplated in Article 83.2 of the GDPR and 76.2 of the LOPDGDD, regarding the infringement committed by violating the provisions of Article 5.1.f) of the

GDPR, allows for the imposition of a fine of €1,000 (one thousand euros).

VI

Security in processing

Article 32 of the GDPR "Security of processing" establishes that:

"1. Taking into account the state of the art, the costs of implementation, and the nature, scope, context, and purposes of the processing, as well as the risks of varying probability and severity for the rights and freedoms of natural persons, the controller and the processor shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk, which may include, among others:

- a) the pseudonymization and encryption of personal data;
- b) the ability to ensure the ongoing confidentiality, integrity, availability, and resilience of processing systems and services;
- c) the ability to restore the availability and access to personal data quickly in the event of a physical or technical incident;
- d) a process for regularly verifying, assessing, and evaluating the effectiveness of technical and organizational measures to ensure the security of processing.

2. When assessing the appropriateness of the level of security, particular consideration shall be given to the risks presented by the processing of data, in particular as a consequence of the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

3. Adherence to an approved code of conduct pursuant to Article 40 or to an approved certification mechanism pursuant to Article 42 may serve as an element to demonstrate compliance with the requirements set out in paragraph 1 of this Article.

4. The controller and the processor shall take measures to ensure that any person acting under the authority of the controller or the processor and having access to personal data may only process such data on instructions from the controller, unless required to do so by Union or Member State law."

In this case, it has come to light that documentation containing personal data of minors, including health data, was abandoned in a public place, which constitutes a violation of data protection regulations.

The facts in question in the report presented are specified in the existence of a security incident involving SCOUTS, allowing documentation containing personal data (including health data of minors) to be abandoned, such that the security of the data was not guaranteed, putting the confidentiality of the data at risk.

The documentation in the file provides clear indications that SCOUTS has violated Article 32.1 of the GDPR, as a security breach occurred due to the lack of appropriate security measures to ensure the confidentiality of personal data contained in documents abandoned by SCOUTS.

In this case, SCOUTS' responsibility is determined because it is responsible for making decisions aimed at effectively implementing appropriate security measures to ensure a level of security adequate to the risk, which it has failed to do. This responsibility is enforceable, even if a breach of personal data has not occurred.

Therefore, in accordance with the evidence available at this moment of resolution of the sanctioning procedure, it is considered that the known facts constitute an infringement attributable to SCOUTS for violating Article 32 of the GDPR, by failing to ensure the protection of personal data, including that of minors, among which are health data.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

7/9

IV

Typification and Qualification of the Infraction

The known facts constitute an infraction, attributable to SCOUTS, typified in Article 83.4.a), which stipulates the following:

“Infractions of the following provisions will be sanctioned, in accordance with paragraph 2, with administrative fines of up to 10,000,000 EUR or, in the case of a company, an amount equivalent to a maximum of 2% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the obligations of the responsible party and the processor under Articles 8, 11, 25 to 39, 42, and 43; For the purposes of the statute of limitations for infractions, Article 73 (infractions considered serious) of the LOPDGDD indicates:

“According to what is established in Article 83.4 of Regulation (EU) 2016/679, infractions that constitute a substantial violation of the articles mentioned therein are considered serious and will prescribe after two years, particularly the following:

(...)

f) The failure to adopt those technical and organizational measures that are appropriate to ensure a level of security appropriate to the risk of processing, as required by Article 32.1 of Regulation (EU) 2016/679.”

IV

Sanction for the Infraction of Article 32 of the GDPR

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this moment of resolution of the sanctioning procedure, it is considered that the balance of the circumstances contemplated in Article 83.2 of the GDPR and 76.2 of the LOPDGDD, regarding the infraction committed by violating the provisions of Article 32 of the GDPR, allows for the imposition of an administrative fine of €1,000 (one thousand euros).

Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO IMPOSE on ASOCIACIÓN DE SCOUTS INDEPENDIENTE DE MADRID, with NIF G84849546,

- for the alleged infraction of Article 5.1.f) of the GDPR typified in Article 83.5 of the GDPR, with an administrative fine of €1,000 (one thousand euros)

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

8/9

- for the alleged infraction of Article 32 of the GDPR typified in Article 83.4 of the GDPR, with an administrative fine of €1,000 (one thousand euros).

SECOND: NOTIFY this resolution to ASOCIACIÓN DE SCOUTS INDEPENDIENTE DE MADRID.

THIRD: This resolution will be executive once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has elapsed without the interested party having exercised this right.

The sanctioned party is warned that they must pay the imposed sanction once this resolution becomes executive, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account No. IBAN:

ES00-0000-0000-0000-0000-0000, opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A.

Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once executive, if the date of executivity falls between the 1st and 15th of each month, inclusive, the period for voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment period will be until the 5th of the second following month or the next business

day.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal.

If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also inform the Agency of the

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
9/9

documentation that proves the effective filing of the contentious-administrative appeal. If the Agency does not become aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the precautionary suspension to be concluded.

938-16012024
Mar España Martí
Director of the Spanish Agency for Data Protection
C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es